

Approved as to
form only:
[Signature]
Date: 8/3/18

CONTRACT NO. _____

**AGREEMENT BETWEEN THE CITY OF CHEYENNE AND
THE CHEYENNE SYMPHONY ORCHESTRA**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming, hereafter "City", whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and the Cheyenne Symphony Orchestra, a Wyoming non-profit corporation, hereafter "CSO", whose address is 1904 Thomes Avenue, Cheyenne, Wyoming 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to authorize the CSO to use the Cheyenne Civic Center for Youth Education Concerts, hereafter "Program", subject to the terms and conditions in this Agreement, on the date contained in Attachment A, attached hereto, incorporated by reference and expressly made a part of this Agreement.
3. **Term.** This Agreement is effective when all parties have executed it and all approvals have been granted. The term of this Agreement is from July 1, 2018, through June 30, 2019.
4. **Payment.** The City agrees to pay the CSO the sum of Six Thousand Five Hundred Dollars (\$6,500.00) for the services set forth in Attachment A upon acceptance of performance by the City. The payment is to be made upon receipt of the accounting records discussed in this Agreement. If the scope of the Program changes, amendments to this Agreement shall be in writing.

Payment by the City to the CSO for the services performed under the terms and conditions of this Agreement is contingent upon the availability of City funds which are appropriated and allocated for payment of such obligations. The City shall notify the CSO at the earliest possible time of any such shortages or depletion of funds.

5. **Insurance.** The CSO shall provide commercial general liability insurance for claims arising out of bodily injury, illness and death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000.00 per occurrence and \$2,000,000.00 aggregate for the entire term of this Agreement.

i. The City of Cheyenne shall be named as an additional insured on CSO's general liability insurance policy and CSO shall provide the City with a copy of the endorsement.

ii. CSO shall provide the City with certificates of insurance acknowledging the above-stated coverage prior to beginning any work under this Agreement.

iii. It is understood and agreed that this policy is primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon CSO to immediately notify in writing the City risk manager, city

clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

iv. In addition, CSO shall provide the City with a copy of the insurance policy and/or policy endorsement listing the City of Cheyenne as an additional insured. The City's failure to request or review such policy, endorsement, or certificate shall not affect the City's rights or CSO's obligation hereunder.

v. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

6. **Covenant Against Contingent Fees.** The CSO warrants that no person, selling agency or other organization has been employed or retained to solicit or secure this Agreement upon agreement or understanding for a commission, percentage, brokerage or contingent fee. For breach or violation of this warrant, the City shall have the right to annul this Agreement without liability or, in its discretion, to deduct from the compensation, or otherwise recover, the full amount of such commission, percentage, brokerage or contingent fee.

7. **Political Activity Prohibited.** None of the funds, materials, property or services contributed by the City or the CSO shall be used in the performance of this Agreement for any partisan political activity, or to further the election or defeat of any candidate for public office.

8. **Religious Activity Prohibited.** There shall be no religious worship, instruction or proselytization as part of or in connection with the performance of this Agreement.

9. **Records and Accounts.** The CSO shall maintain fiscal records and accounts in compliance with Wyoming law as deemed necessary and appropriate by the City to assure proper accounting for Program funds. These records shall be made available for audit purposes to the City and will be retained for three years after the expiration of the Agreement. The CSO shall file with the City Treasurer an audited financial statement as completed each year with a copy to the Cheyenne City Council.

10. **Reports and Inspection.** The CSO shall make financial, program progress, and other reports as requested by the City and will arrange for on-site inspections by the City or representatives at the request of either.

11. **General Provisions.**

a. **Amendments.** Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement must be incorporated by written instrument, executed and signed by all parties.

b. Applicable Law. The construction, interpretation and enforcement of this Agreement are governed by the laws of the State of Wyoming. In the event of a lawsuit, the courts of the State of Wyoming will have jurisdiction and venue will be in the First Judicial District, Laramie County, Wyoming.

c. Compliance with Laws. The CSO agrees to comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

d. Entirety of Agreement. This Agreement and Attachment A represent the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

e. Indemnification. The CSO agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) CSO's breach of any term or provision of this Agreement, or (2) any negligent or wrongful act, error or omission by CSO, or its employees or subcontractors in the performance of this Agreement. CSO acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Notice. All notices arising out of or from the provisions of this Agreement will be in writing and given to the parties either by regular mail or delivery in person.

g. Prior Approval. This Agreement will not be binding upon either party, no services will be performed under the terms of this Agreement nor payment made until this Agreement has been approved by all necessary authorities.

h. Governmental Immunity. The City of Cheyenne expressly invokes governmental immunity for any claim arising out of this Agreement, pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

i. Termination. It is mutually agreed and understood that the City reserves the right to cancel this Agreement at any time, provided, however, that the City shall pay the CSO on a pro rata basis for services rendered up to the time of cancellation. Notwithstanding the above, the CSO shall not be relieved of liability to the City for damages sustained by the City because of any breach of this Agreement by the CSO, and the City may withhold any reimbursement to the CSO for the purpose of set-off until such time as the exact amount of damages due the City from the CSO is agreed upon or otherwise determined.

j. **Force Majeure.** The parties agree that any delay or failure of the other to perform its obligations under this Agreement, except for the payment of money for services rendered, shall be excused due to acts of God, strikes, action of regulatory agencies, fire, flood, windstorm, explosion, riot, war, sabotage, or other cause or causes beyond the reasonable control of the non-performing party, provided that timely notice of such delay is given by the party to the other and each of the parties shall be diligent in attempting to remove the cause of non-performance.

12. **Signatures.** In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

The Agreement date is the date of the last signature affixed to this page.

CHEYENNE SYMPHONY ORCHESTRA

Date

President

Corporate Secretary

CITY OF CHEYENNE

Date

Marian J. Orr, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

ATTACHMENT A

The Cheyenne Symphony Orchestra will present two free Youth Education Concerts on Thursday, January 24, 2019, at 9:30 a.m. and 1:00 p.m., to all fifth and sixth graders from Laramie County School District Nos. 1 and 2, Parochial Schools and Home Schools. The concerts will be held in the Cheyenne Civic Center. Anticipated student attendance is projected to be 3,000.